

**BOARD OF ETHICS
OF THE CITY OF PHILADELPHIA**

	:
J. Shane Creamer, Jr.	:
Executive Director	:
Board of Ethics	:
of the City of Philadelphia	:
1515 Arch Street, 18 th Floor	:
Philadelphia, PA 19102	:
	: Matter No: 2510ET24
v.	:
Dee Dukes	: Date of Issuance & Mailing: June 18, 2026
	:
	:
deedukes33@gmail.com	:

FINAL DETERMINATION

On October 23, 2025, the Executive Director of the Board of Ethics initiated an administrative enforcement proceeding against Respondent Dee Dukes alleging that Respondent did not file timely a Statement of Financial Interest in violation of Philadelphia Code Section 20-610 and Board Regulation No. 3. Respondent waived her right to a hearing. This Final Determination constitutes the Board’s adjudication of the matter on the administrative record. As described in more detail herein, we find that Respondent committed a single violation of the financial disclosure filing requirement and impose a penalty of \$250.

I. JURISDICTION

Philadelphia Home Rule Charter Section 4-1100 provides that the Board of Ethics “shall administer and enforce all provisions of this Charter and ordinances pertaining to ethical matters,” including the City’s Ethics Code, which is set forth at Philadelphia Code Chapter 20-600 and includes, at Section 20-610, the requirement to file an annual statement of financial interests.

II. ADMINISTRATIVE ADJUDICATION OF ETHICS VIOLATIONS

Home Rule Charter Section 4-1100 provides that the Board “shall conduct its enforcement activities either by bringing enforcement actions in the Court of Common Pleas or, if authorized by Council by ordinance, administratively adjudicating alleged violations and imposing civil penalties and other remedies for violations.” Code Section 20-606(1)(h) authorizes the Board to administratively adjudicate alleged violations of the laws within its jurisdiction.

Pennsylvania’s Local Agency Law, 2 Pa.C.S. § 105 et seq., sets forth the essential rules and procedures for adjudications conducted by a municipal administrative agency. Board Regulation No. 2 provides detailed procedures and requirements for such adjudications. Notably, in order to comply with the due process requirements articulated by the Pennsylvania Supreme Court in *Lyness v. Commonwealth*, 529 Pa. 535 (1992), Regulation No. 2 mandates that the Board “shall maintain a separation between the adjudicative functions and the investigatory or prosecutorial functions.” As a result, the individual members of the Board, any Hearing Officer in a particular case, and the General Counsel are part of the adjudicative function, while the Executive Director and Enforcement Staff assisting them are part of the prosecutorial function. At all times, the Board, its Hearing Officer, and Board Staff take care not to commingle the adjudicatory and prosecutorial functions of the agency.

Paragraph 2.16 of Regulation No. 2 provides that the Board may “appoint a Hearing Officer to oversee pre-hearing disclosures, preside over a hearing, and prepare Findings of Fact and Conclusions of Law for the Board’s consideration.” The Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2 (“Supplemental Procedures”) further outline the role of the Hearing Officer, including that “[t]he Hearing Officer or the

General Counsel (if a Hearing Officer has not been appointed), shall also have the discretion to schedule such pre-hearing conferences and issue amended or supplemental orders as are necessary for the fair and expeditious adjudication of the case.”

On March 17, 2021, the Board appointed Louis S. Rulli, the Practice Professor of Law and Director of the Civil Practice Clinic and Legislative Clinic at the University of Pennsylvania School of Law, to serve as a Hearing Officer. Mr. Rulli presided over the proceedings in this case.

III. PROCEDURAL HISTORY

The Executive Director of the Board of Ethics initiated this administrative enforcement proceeding by serving a Notice of Administrative Enforcement Proceeding (“Notice”) on Respondent on October 23, 2025.¹ (Docket No. (“Doc.”) 1.) The Notice alleged that Respondent violated Philadelphia Code Section 20-610 (Statement of Financial Interests) as interpreted by Board Regulation No. 3. (Notice at ¶¶7-8.)

The Hearing Officer issued Procedural Instructions on October 29, 2025 (Doc. 2.) explaining the process for administrative enforcement proceedings before the Board. The Procedural Instructions advised that a Response to the Notice must be filed on or before November 12, 2025. On November 12, 2025, Respondent requested an extension of time to respond to the Notice. The Hearing Officer granted this request and set a new deadline of November 17, 2025. (Doc. 4.) On November 17, 2025, Respondent filed her Response to the

¹ Initial service was made via email with delivery confirmation to deedukes33@gmail.com (hereinafter her “personal email”). Regulation No. 2, Paragraph 2.13(b) permits that the Notice be served by “any other method that provides delivery confirmation.” Item 1 of the Supplemental Procedures further provides for service of filings via email. On October 24, 2025, Respondent emailed the Executive Director and General Counsel from deedukes33@gmail.com to request that all further communications related to this matter be served by mail. In accordance with this request, all subsequent communications related to this matter were sent via both email and mail delivery.

Notice. (Doc. 5.) In her Response, Respondent affirmatively stated she did not want a hearing on this matter. (*Id.*)

The Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2 (“Supplemental Procedures”) allow the Executive Director to file a brief in support of the Notice if a respondent does not request a hearing. Consistent with the Supplemental Procedures, the Hearing Officer issued a Briefing Order on November 20, 2025, requiring the Executive Director to file his brief no later than December 1, 2025. (Doc. 6.) The Briefing Order explained that Respondent could file a response to the Executive Director’s brief within fourteen days of service.

On December 1, 2025, the Executive Director filed a Brief in Support of the Notice. (Doc. 7.) On December 5, 2025, Respondent requested an extension of time to respond to the Executive Director’s submission. The Hearing Officer granted Respondent’s request, giving her until January 5, 2026, to file her brief. (Doc. 8.) On January 5, 2026, Respondent filed her Brief in Opposition to Notice of Administrative Enforcement Proceeding. (Doc. 9.)

On February 19, 2026, the Hearing Officer issued an Order to Close the Administrative Record explaining that after February 24, 2026, there would be no further opportunity to submit evidence or argument. (Doc. 10.) The parties had until 5:00 p.m. on February 24, 2026, to object to the closure of the record. Neither party filed an objection or additional materials for the record.

IV. FACTUAL BACKGROUND

In January 2024, the Mayor appointed Respondent to serve on the Educational Nominating Panel (“ENP”). (ENP Official Transcription of Minutes, Feb. 1, 2024 (“ENP Tr.”), Executive Director’s Brief (“ED’s Br.”) at Ex. B.) The ENP screens potential nominees for the Board of Education. Charter §12-207. Upon taking office, the Mayor must convene the ENP no

later than February 1 of the year that the Mayor’s term begins. *Id.* at (a). The ENP has only a few weeks to submit a list of potential nominees to the Mayor. *Id.* at (b). While ENP appointments technically continue for a period of four years, once the list of nominees is submitted the ENP does not meet, conduct business, or otherwise have any functional existence unless it is formally reconvened to fill a vacancy on the Board of Education. *Id.* at (a)(2).

The newly convened ENP held its first public meeting on February 1, 2024. (ENP Official Transcription of Minutes, Feb. 1, 2024 (“ENP Tr.”), Executive Director’s Brief (“ED’s Br.”) at Ex. B.) The first order of business was the adoption of the Rules of Procedure for the ENP. (*Id.* at 1.) The ENP voted to adopt the Rules of Procedure. (*Id.*) The rules were circulated to ENP members and publicly posted on the ENP’s website. (Stmt. of John Dolan, ENP Tr. at 1.) The published Rules of Procedure include a summary of ethical responsibilities for ENP members, including a mention of financial disclosure filing requirements. *See* ENP Rules of Procedure, Feb. 2024, available at <https://www.phila.gov/media/20240213174056/2024-Educational-Nominating-Panel-Rules-of-Procedure.pdf> at 3. The ENP held its last public meeting on March 12, 2024. ENP Meeting Agenda for March 12, 2024, available at <https://www.phila.gov/media/20240311151759/ENP-Second-Public-Meeting-Agenda-pdf.pdf>.²

The Ethics Code requires certain individuals to file a Statement of Financial Interest. Philadelphia Code § 20-610(1). Members of the Educational Nominating Panel are required to file an SFI by May 1 in any year in which they hold office and by May 1 of the year after they

² The Hearing Officer took judicial notice of public records of the proceedings of both the ENP and the Board. While the Board is not bound by strict rules of evidence, we note that the Pennsylvania Rules of Evidence provide for judicial notice at any stage of the proceeding. Pa. R.E. 201(d). We find that official records or minutes of public proceedings of City boards and commissions can provide facts regarding what was done or said at those proceedings that “can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned.” Pa. R.E. 201(b)(2).

leave such office. Phila. Code § 20-610(1); Bd. Reg. 3. Since the ENP met and conducted business in 2024, its members were required to file SFIs for 2024 by May 1, 2025.

Respondent did not file an SFI by May 1, 2025. (*See* Respondent's SFI, E.D.'s Br. at Ex. A.) Board staff sent three emails to Respondent at dukes.phillyeducationpanel2024@gmail.com notifying her that her 2024 SFI was overdue. Specifically, the Board's Investigative Analyst Alexander Kramer sent a letter via email on May 8, 2025, advising Respondent that she had "30 days to cure this defect," after which the matter would be referred for enforcement. (ED's Br. at Exs. D, E.) On May 22, 2025, Mr. Kramer sent another email to Respondent stating that the electronic filing system still reflected the absence of a disclosure filing by Respondent and reminding her of the thirty-day period in which to file. (ED's Br., Ex. D.) On June 13, 2025, Mr. Kramer sent another letter to Respondent via email stating that after June 30, 2025, the matter could only be resolved through the Board's Enforcement Division and could carry a civil monetary penalty of up to \$2,000. (*Id.*)

Respondent states that she did not receive any of the above compliance messages. (Respondent's Response ("Resp.") at 3.) According to Respondent, the email address to which Mr. Kramer sent the compliance messages described above – dukes.phillyeducationpanel2024@gmail.com – was an account she created at the recommendation of City staff assigned to the ENP and used exclusively for confidential correspondence related to the ENP. (*Id.* at 2.) Respondent does not state how often or during what time period she used her ENP email address, nor does she state whether she provided any other email addresses to ENP or other City personnel prior to May 1, 2025. Respondent does not claim that she lacked the ability to access her ENP email account. Instead, Respondent states that

her ENP email address was not “active” after the ENP’s work ended. (*See* Respondent’s Brief (“R’s Brief”) at 6; Resp. at 3.)

Respondent asserts that she did not receive onboarding materials, training, or reminders during her ENP service. (R’s Brief at 3.) The Executive Director did not offer any evidence relating to training, emails, or other information Respondent may have been sent or received in advance of the May 1, 2025, filing deadline. Published Board records show that Board staff presented ethics training to the ENP on February 1, 2024.³ Bd. of Ethics Public Mtg. Minutes for Feb. 21, 2024, Attachment B, Feb.16, 2024 Gen. Counsel’s Rpt. at 1 available at <https://www.phila.gov/media/20240412110351/BOE-minutes-20240221.pdf>. Board staff also held additional General Ethics and Financial Disclosure Info Sessions available to all City officers and employees in 2024 and 2025. *Id.* (General Ethics Feb. 14, 2024); *see also* Bd. of Ethics Public Mtg. Minutes for Mar. 20, 2024, Attachment B, Mar. 15, 2024 Gen. Counsel’s Rpt. at 1 available at <https://www.phila.gov/media/20240517103341/BOE-minutes-20240320.pdf> (General Ethics Mar. 26 & Apr. 11, 2024; Financial Disclosure Mar. 21 & Apr. 3, 2024); Bd. of Ethics Public Mtg. Minutes for Mar. 19, 2025, Attachment B, Mar. 14, 2025 Gen. Counsel’s Rpt. at 2 available at <https://www.phila.gov/media/20250523125814/BOE-minutes-20250319.pdf> (Financial Disclosure Mar. 12, 2025); Bd. of Ethics Public Mtg. Minutes for Apr. 16, 2025, Attachment B, Apr. 10, 2025 Gen. Counsel’s Rpt. at 2 available at <https://www.phila.gov/media/20250523125847/BOE-minutes-20250416.pdf> (Financial Disclosure Mar. 26 & Apr. 10).

³ The Hearing Officer took judicial notice of the Board’s monthly public session meeting minutes. The monthly General Counsel’s Report is attached to these minutes and includes a calendar of the trainings provided in the interval since the last such report. Thus, the Board’s public session minutes for February 21, 2024, contain a calendar detailing all training presented by Board staff between January 13, 2024, and February 16, 2024.

According to Respondent, the first time she learned that she had to file an SFI for 2024 was when a member of the Board's staff called her on her cell phone at the end of July 2025.⁴ (Resp. at 2, R's Brief at 3.) She does not identify the name of the individual who called her. Respondent asserts that she was told by this individual that all she needed to do was file her disclosure statement, and there was no mention of a potential penalty. (Resp. at 2-3.)

Respondent further alleges that during the July telephone call she provided the caller with her personal email address and asked for a copy of the SFI form. (Resp. at 2-3.) Respondent asserts that while she "eventually" received the SFI form via email, she did not understand how to complete it. (*Id.*) On September 25, 2025, Respondent obtained help from an unnamed individual to complete the SFI form. (*Id.*) Respondent did not offer any email messages, telephone records, or other documents evidencing the existence, timing, or content of these alleged contacts with Board staff.

The Executive Director disputes that the Respondent's telephone call in July 2025 was with a Board staff member, positing that this call may have been with a member of the Chief Integrity Officer's staff. (ED's Brief at 6, n.4.) The Executive Director does not address whether he agrees that a member of Board staff provided filing assistance to Respondent on September 25, 2025. It is undisputed, however, that Respondent filed her 2024 SFI via the Board's electronic filing system on September 25, 2025. (Resp. at 3.)

⁴ In her Response, Respondent states that she received this phone call at the end of July 2025. Resp. at 2. In her Brief in Opposition, she states that the call took place in July or August 2025. (R's Brief at 1, 4, 5.)

V. RELEVANT LAW

a. Standards for Administrative Adjudication

In its adjudicative role, the Board must “determine, by a preponderance of the evidence, whether a violation of applicable law has occurred.” Reg. 2, ¶ 2.20. The Executive Director bears the burden of proof and must establish each element of each alleged violation. *See Hui v. City of Philadelphia Parking Auth.*, 913 A.2d 994, 1000-01 (Pa. Commw. Ct. 2006). The Board’s findings of fact must be supported by substantial evidence. *Monaghan v. Bd. of Sch. Dir.*, 618 A.2d 1239, 1243-44 (Pa. Commw. Ct. 1992). Substantial evidence is such relevant evidence that a reasonable mind might accept as adequate to support a conclusion. *Mrs. Smith's Frozen Foods Co. v. Workmen's Comp. Appeal Bd. (Clouser)*, 539 A.2d 11, 14 (Pa. Commw. Ct. 1988); *see also Bonatesta v. N. Cambria Sch. Dist.*, 48 A.3d 552, 558 (Pa. Commw. Ct. 2012).

Paragraph 2.14(c) of Regulation No. 2 provides that “[a] respondent’s failure to request a hearing in their written response to the Notice is a waiver of the right to a hearing.” Paragraph 2.20 of Regulation No. 2 describes the process by which the Board shall make final determinations. Paragraph 2.20(b) further explains:

If the respondent does not request a hearing, the Board may make its final determination based on:

- i. Undisputed allegations in the Executive Director’s Notice of Administrative Enforcement Proceeding; or
- ii. Evidence submitted by the Executive Director in support of the Notice of Administrative Enforcement Proceeding, including but not limited to deposition transcripts, documents, and affidavits or declarations.

b. Requirement to File a Statement of Financial Interests

Section 20-610 of the Philadelphia Code provides:

(1) The following individuals shall file a statement of financial interests for the preceding calendar year with the Board of Ethics no later than the first day of May of each year that the individual holds office and of the year after the

individual leaves such office. All such individuals who take office after the effective filing date or less than thirty (30) days before the effective filing date must file a statement of financial interest for the preceding calendar year within thirty (30) days of taking office.

(e) Members and executive directors of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation;

Section 20-601(4) defines “board or commission member” as “[a] member of any City of Philadelphia board or commission established by The Philadelphia Home Rule Charter, The Philadelphia Code, or an Executive Order.”

Section 20-606(1)(e)(.2) of the Code provides that

The Board shall issue rules and regulations concerning the filing of Statements of Financial Interest for the purpose of ensuring compliance by all City officers and employees with the applicable provisions of financial disclosure law. The Board shall investigate any instances of non-compliance and take appropriate action.

Consistent with this directive, the Board promulgated Regulation No. 3 (Statements of Financial Interests) in December 2021 to clarify and interpret the SFI filing requirements. Subpart B of Board Regulation No. 3 lists who must file an SFI, including members of City boards and commissions who must file an SFI. Specifically, Paragraph 3.6 of Regulation No. 3 requires filing by “[a] member of the Educational Nominating Panel, Civil Service Panel, Citizens Police Oversight Commission Selection Panel, or Finance Panel.” Paragraph 3.7 of Regulation No. 3 provides further instruction as to when filers must submit an SFI:

- a. An individual who is required to file a Statement of Financial Interests must do so by the first day of May in any year in which they hold office and by the first day of May of the year after they leave such office.
- b. An individual who takes office after the first day of April shall file within 30 days of taking office.

Example 4 details when a member of a nominating panel must file an SFI:

A nominating panel listed in Paragraph 3.6 convenes on September 15, 2021 and concludes its work on November 1, 2021. The panel's members must each file a Statement of Financial Interests with the Board by October 15, 2021 disclosing information related to calendar year 2020. They must also each file a Statement of Financial Interests with the Board by May 1, 2022 disclosing information related to calendar year 2021.

c. Civil monetary penalties

Code Section 20-612 provides that penalties for violations of the Ethics code "shall be as set forth in Chapter 20-1300." Section 20-1302 provides for penalties for all violations not enumerated in Section 20-1301 as follows:

All other violations of Chapters 20-600 or 20-1000 shall be subject to a fine or civil penalty of one thousand dollars (\$1,000), subject to the following provisions.

(1) Definitions. For purposes of this Section the following definitions apply.

(a) *Mitigating Factors*. The following are mitigating factors:

- (.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.
- (.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.
- (.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.
- (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

(b) *Aggravating Factors*. The following are aggravating factors:

- (.1) *Intent*. The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.
- (.2) *Repeat violation*. The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.
- (.3) *Obstruction of investigation*. The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.
- (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

(2) *Consideration and Effect of Mitigating Factors and Aggravating Factors*.

(a) When considering the imposition of a penalty under this Section, the Board of Ethics in an administrative adjudication or court of competent jurisdiction shall make factual findings regarding mitigating factors and aggravating factors.

(b) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars (\$500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars (\$750) if more than one mitigating factor is present.

(c) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section 20-1302 shall be increased by one thousand dollars (\$1,000) for each aggravating factor that is present, provided that the total fine or civil penalty that may be imposed for one violation shall not exceed two thousand dollars (\$2,000).

Regulation No. 3, Paragraph 3.19 further provides for civil monetary penalties to be assessed for violations of the SFI filing requirements:

An officer or employee of the City who violates any of the restrictions set forth in this Regulation shall be subject to a civil penalty of up to \$2,000 for each such violation. In determining the appropriate amount of monetary penalty, the Board may consider both mitigating and aggravating factors. Mitigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics. Aggravating factors that the Board may consider include whether the violator: (i) acted knowingly; (ii) is a repeat offender; or (iii) obstructed the investigation of the Board of Ethics.

VI. ANALYSIS

a. Violation of Section 20-610 and Regulation No. 3

The Notice has one count for a single violation of Section 20-610 and Regulation No. 3 based on Respondent's failure to file an SFI disclosing financial interests for 2024 by May 1, 2025. (Notice at ¶¶7-8.) The elements of a *prima facie* case for failure to file an SFI are straightforward. The Executive Director must show by a preponderance of the evidence that Respondent:

- held a City position listed in Philadelphia Code Section 20-610(1) or Subpart B of Board Regulation No. 3;
- served in that position in 2024; and
- did not file an SFI disclosing financial interests for 2024 by May 1, 2025.

The Executive Director set forth factual allegations in the Notice that he supplemented with evidence submitted through his Brief in Support. Respondent admitted both that she was a member of ENP in 2024 and that she filed her 2024 SFI on September 25, 2025.

Paragraph 2.20 of Regulation No. 2 provides that our final determination may be based on the uncontested facts in the Notice and any evidence submitted by the Executive Director in support of the Notice. *See* Bd. Reg. No. 2, ¶2.20(b). The Supplemental Procedures further provide for briefing by both the Executive Director and a respondent where a hearing is waived. Supplemental Procedures at Item 5. Between the Notice and his Brief in Support, the Executive Director has sufficiently alleged uncontested facts and presented evidence to support each element of a violation of the SFI filing requirement.

It is undisputed that Respondent served on the ENP in 2024. Regulation No. 3 requires that, if the ENP is convened, all members must file an SFI. Reg. 3, ¶3.6. The regulation clearly explains that a member of a nominating panel (like the ENP) must file an SFI disclosing their financial interests in any calendar year in which the panel was convened, even if the May 1 deadline arises after the panel's work has ended. Reg. 3, ¶3. 19, Example 4. It is further uncontested that Respondent did not file her 2024 SFI until September 25, 2025. (Notice at ¶6.)

Despite the uncontested facts, Respondent argues that we should not find a violation of Section 20-610 because she did not know that she was required to file a 2024 SFI. Respondent asserts that the "Board must provide proper notice to the individual so as not to prejudice the rights and responsibility of an individual." (Resp. at 2.) In support of this argument, Respondent relies on her assertions that she (a) did not receive any training or documents relating to the SFI

requirement during her ENP service (Resp. at 4; R's Brief at 3); (b) was not informed that she must file a 2024 SFI (Resp. at 2, R's Brief at 2); (c) was not warned that there might be a penalty for late filing (Resp. at 4); and (d) did not receive any reminders to file an SFI until after the May 1, 2025 deadline (Resp. at 3; R's Brief at 3). In essence, Respondent argues that there was no violation because her failure to timely file her 2024 SFI was due to a lack of knowledge and was not intentional.

Respondent's alleged lack of knowledge or intent, even if true, does not support her contention that she did not violate the SFI filing requirement. Contrary to Respondent's arguments, Section 20-610 does not require that the Board provide individual notice of the obligation to file an SFI. Such notice cannot, therefore, be a *prima facie* element required to prove a violation of the SFI filing requirement. Accordingly, the Executive Director has established a *prima facie* showing that Respondent failed to timely file her 2024 SFI in violation of Section 20-610 and Regulation No. 3.

Rather, we conceptually regard Respondent's assertion that she lacked knowledge of the legal requirement to file an SFI as an affirmative defense.⁵ As such, Respondent bears the burden to establish both legally and factually that the Board may not find a violation in this case despite the uncontested *prima facie* evidence. *See* 8 Standard Pennsylvania Practice 2d § 49:66 ("burden of proof is generally upon the defendant to prove all affirmative defenses"). While Respondent's position is understandable, there is no legal basis upon which to find that Respondent's lack of personal notification, even if true, precludes a finding that her late filing constitutes a violation.⁶

⁵ The Supreme Court of Pennsylvania has defined "affirmative defense" as "a defendant's assertion of facts and arguments that, if true, will defeat the plaintiff's ... claim, even if all the allegations in the complaint are true." *Reott v. Asia Trend, Inc.*, 618 Pa. 228, 55 A.3d 1088, 1095 (2012).

⁶ There is no dispute that there are multiple notices about financial disclosure filing requirements outlined in governing law, and that these requirements are amplified in multiple trainings, website notices, and even in the distribution of Rules governing ENP service provided to all of its members. Respondent's argument disregards all of

Pennsylvania courts have long affirmed that ignorance of the law is not a defense. *See, e.g., Good v. Herr*, 1844 WL 4989, at *3 (Pa. 1844) (ignorance of the law furnishes no excuse to any person, either civilly or criminally); *Commw. v. Mittelman*, 154 Pa. Super. 572, 36 A.2d 860 (1944) (lack of knowledge that acts constituted a crime not a defense). Furthermore, the Ethics Code explicitly addresses this issue in Section 20-606(1)(b)(.2), which provides that:

...on or before the tenth day after an individual becomes a City officer or employee, each head of a City department shall provide a copy of this Chapter to all such new officers or employees. Upon receipt of a copy of this Chapter, the City officer or employee shall sign a written statement that such officer or employee has read and shall conform with the provisions of this Chapter, and this statement shall be placed in the City officer's or employee's personnel file. *Failure of a City officer or employee to receive a copy of this Chapter, failure to receive and sign such written statement, or failure to maintain the written statement on file shall have no effect on the duty of the City officer or employee to be in compliance with this Chapter.*

(emphasis added). This provision supports the principle that a lack of knowledge of the requirements of the Ethics Code is not a basis upon which to excuse an officer or employee from compliance. In placing the responsibility to distribute ethics materials on City departments, the Ethics Code recognizes that City managers – rather than the Board or its staff – are best positioned to provide prompt notice of ethics requirements to new City officers and employees. Similarly, while the Ethics Code requires the Board of Ethics to create educational materials and develop and conduct training, the responsibility to *attend* training and to be familiar with reporting requirements falls on the individual officer or employee. Philadelphia Code §20-606(1)(b)(.1).

these notices, and contends that she was entitled to personal, individualized notice about her filing responsibilities from the Board of Ethics.

Respondent does not assert that the Board failed to publish educational materials or to provide ethics training to City officers and employees.⁷ Rather, Respondent's position is that she did not know she was required to file and therefore did not intentionally fail to do so. The law does not require, however, that employees and officers be *personally notified* of the need to file an SFI. Moreover, ample notice of disclosure filing requirements has been provided in the law, as well as through trainings, website resources, and Board outreach generally and directly to the ENP. Clearly, each public servant is required to know and comply with governing ethics rules when they accept official responsibility. City officials, therefore, remain responsible for failure to comply even where they lack such knowledge.

Accordingly, after consideration of the evidence and arguments of both parties, we find that Respondent failed to timely file her 2024 SFI in violation of Section 20-610 and Regulation No. 3.

VII. PENALTY

Section 20-612 authorizes the Board to assess civil monetary penalties for violations of the Ethics Code as described in Chapter 20-1300. Section 20-1302 sets a base penalty of \$1,000 that the Board may increase based on aggravating factors or decrease based on mitigating factors. Section 20-1302(2)(a) directs the Board to “make factual findings regarding mitigating factors and aggravating factors.” Section 20-1302(2)(b) provides:

(b) The one thousand dollar (\$1,000) fine or civil penalty set forth in Section 20-1302 shall be reduced by five hundred dollars (\$500) if one mitigating factor is present and shall decrease by seven hundred fifty dollars (\$750) if more than one mitigating factor is present.

⁷ While not legally required to support a finding of a violation, we again note that Board staff presented ethics training to the ENP on February 1, 2024 (as well as at least two ethics trainings open to all City officers and employees during the time the ENP was convened). *See supra* pages 6-7. Board staff also provided multiple Financial Disclosure Info Sessions via Zoom leading up to the May 1, 2025, deadline. *Id.* In addition, the Board's website contains extensive resources available to the public about financial disclosure requirements for City employees and officers. *See* <https://www.phila.gov/departments/board-of-ethics/financial-disclosure/>.

We read the plain language of this provision to mean that if the Board finds a violation in an administrative enforcement proceeding, it may neither waive the monetary penalty nor impose a monetary penalty of less than \$250 per violation. Thus, Section 20-1302(2)(b) effectively sets a minimum penalty of \$250 per violation even if more than two mitigating factors are present.

The Executive Director proposed a penalty of \$1,000.⁸ (*See* Notice at 4.) Respondent argues that the Board should not assess any monetary penalty. (Resp. at 5.) The Board is directed to make specific factual findings as to mitigating or aggravating circumstances. Accordingly, we examine whether the evidence submitted in this case supports any mitigating or aggravating factors.

a. Aggravating Factors⁹

Neither party has alleged or presented any evidence of aggravating factors in this case. Accordingly, we find no aggravating factors and turn to consideration of mitigating factors.

b. Mitigating Factors

Section 20-1302(1)(a) lists the following mitigating factors:

- (.1) Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.
- (.2) Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.
- (.3) Prompt self-reporting. The violator is found to have reported promptly his or her violation to the Board of Ethics.
- (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant a reduced penalty.

⁸ The Executive Director did not present any argument in support of either enhancement or reduction of the penalty.

⁹ Section 20-1302(1)(b) lists the following aggravating factors:

- (.1) *Intent*. The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally, and not because of mistake or accident or other innocent reason.
- (.2) *Repeat violation*. The violator previously has been found by the Board of Ethics in an administrative adjudication or by a court of competent jurisdiction to have violated the same provision.
- (.3) *Obstruction of investigation*. The violator is found to have obstructed the investigation of the Board of Ethics into the same violation.
- (.4) Such other circumstances as may be identified by the Board of Ethics, by regulation, to warrant an enhanced penalty.

Regulation No. 3, Paragraph 3.19 describes mitigating factors in similar, though not identical, terms: “[m]itigating factors that the Board may consider include: (i) a good faith effort to comply with the law; (ii) prompt corrective action; and (iii) prompt self-reporting to the Board of Ethics.”¹⁰

1. Good faith effort to comply

Basic principles of statutory construction require that a “good faith effort to comply” have some meaning separate from “prompt corrective action.” *See* 1 Pa. C.S. §1921(a) (“[e]very statute shall be construed, if possible, to give effect to all of its provisions”). While this distinction may vary depending on the type of violation at issue, we find that where the law requires filing by a date certain, a good faith effort to comply necessarily requires some attempt to timely fulfill the disclosure obligation. Thus, an untimely disclosure – particularly one made weeks or months after the deadline – is not a good faith effort to comply.

There is no evidence before us that Respondent attempted to file by the deadline of May 1, 2025. Accordingly, we find that Respondent did not make a good faith effort to comply. This finding does not imply that Respondent acted in *bad* faith. Rather, the result is dictated by the absence of any facts showing that Respondent tried to file on or before the May 1 deadline.

2. Prompt corrective action

Having found that the time for corrective action for a filing is necessarily distinct from the initial filing deadline, we consider when late filing of disclosures can nonetheless be sufficiently “prompt” to warrant mitigation of a penalty. Black’s Law Dictionary defines “prompt” as “done quickly, immediately, or at the right time; performed without delay.” Black’s Law Dictionary (12th ed. 2024). To maintain a distinction between good faith efforts to comply

¹⁰ The Hearing Officer concluded that the Board has the authority to consider additional mitigating factors “in order to promote justice, consistent with the overall objectives of the Board of Ethics.” *See* Report & Recommendation at 21-22 (citing Pennsylvania statutory construction law). We agree with this conclusion and its reasoning.

and prompt corrective action in the disclosure context, we find that whether a filer acted “quickly” or “without delay” must be measured not from the filing deadline, but instead from the point at which they knew of the defect and reasonably understood how to correct it.

Respondent corrected her failure to file by filing her 2024 SFI on September 25, 2025. We must determine whether, considering all of the facts and circumstances before us, this corrective action was sufficiently *prompt*. As explained below, we find that Respondent’s filing on September 25, 2025, constituted reasonably prompt corrective action sufficient to warrant mitigation of the required penalty.

We emphasize that failure to read communications from the Board or its staff does not absolve a City officer or employee of their obligation to comply with the City’s ethics rules. Ultimately, Respondent bears the responsibility of checking all email addresses associated with her City service or, if such addresses are no longer active, informing the City of changes in her contact information. That said, the Executive Director does not contend that Respondent willfully ignored emails from Board staff. While Board staff made reasonable and commendable efforts to notify Respondent at her last known email address, the evidence supports Respondent’s contention that she did not actually use her ENP email address after the work of the ENP concluded. We find, therefore, that Respondent did not actually know that her 2024 SFI was overdue until she received a telephone call in late July 2025.

According to Respondent, she did not understand what she needed to file or how to file it until she received filing assistance by telephone on September 25, 2025. With this assistance, Respondent filed her SFI on the same day. Neither party submitted any evidence detailing the content of communications that may have occurred between the July 2025 phone call and Respondent’s September 2025 filing. The only evidence of record as to Respondent’s

understanding of what corrective action was necessary consists of Respondent's own statements. While the Board is concerned at what could be interpreted as a lack of urgency on the part of Respondent, in the absence of any conflicting evidence, we find that Respondent filed promptly once she both knew of the deficiency and received the assistance she needed to correct it. Accordingly, we reduce the \$1000 by \$500 in accordance with Section 20-130(2)(b). In doing so, we rely on the particular facts of this case and do not make any broader findings as to whether corrective action would be considered "prompt" under any other circumstances.

3. Prompt self-reporting

Section 20-1302(1)(a)(.3) describes self-reporting as reporting of a violation to the Board of Ethics. There is no evidence in the record that Respondent at any time contacted Board staff to self-report. We cannot, therefore, mitigate the penalty on the basis of self-reporting.

4. Other mitigating factors

Section 20-609(1)(a)(.4) authorizes the Board to consider additional mitigating factors identified by the Board through regulation. While Regulation No. 3., Paragraph 3.19 does not list any additional mitigating factors, it notes that "[m]itigating factors that the Board may consider *include*" the listed factors. The Board has consistently used "include" or "including" when providing non-exclusive lists of factors or characteristics in regulations. Accordingly, Paragraph 3.19 grants the Board the authority to consider additional mitigating factors in order to promote justice, consistent with the overall objectives of the Board of Ethics. *See* 1 Pa. C.S. §1928(c) (except for statutes in categories listed in (b), "provisions of a statute shall be liberally construed to effect their objects and to promote justice").

We now consider whether the evidence supports the application of any additional mitigating factors. In doing so, we note that our consideration of additional mitigating factors is not mandatory and is based on the full picture of Respondent's City service and actions related to

compliance. Respondent raised several arguments about the appropriateness of a penalty that do not fit into the enumerated mitigating factors. We will evaluate these arguments grouped into two themes: a) absence of intent to commit a violation and b) need for and reliance on assistance to correct an overdue filing.

a. Absence of intent

Respondent seems to argue that the lack of intent or willfulness in her failure to file should mitigate any penalty. (See, e.g., R's Brief at 4.) The Executive Director points out that while intent is identified as an aggravating factor, the list of mitigating factors is silent as to intent. (ED's Brief at 7.) The inclusion of intent in one part of the penalty statute and its silence in another suggests a choice to exclude absence of intent from the list of mitigating factors. Thus, while Respondent's lack of intent is undisputed, it cannot serve as a basis to reduce the penalty.

b. Need for Assistance and Reliance

Respondent asserts that she did not have the disclosure form and needed assistance to complete and file it. She further contends that she was told during the July 2025 telephone call that all she needed to do to come into compliance was file the 2024 SFI and there was no mention of a monetary penalty for a late filing. (R's Brief at 3.)

The Executive Director asserts that this call was not with Board staff (and suggests that it may have been with someone from the office of the Chief Integrity Officer), but he has not presented any evidence to support that assertion. (See ED's Brief at 6, n.4.) While Board staff made reasonable efforts to apprise Respondent of the potential for a penalty (Id. at 5-6, Ex. D, Decl. of A. Kramer.), Respondent asserts that she was unaware of this information as it was sent to an inactive email account. Instead, Respondent relied on what was communicated to her by telephone beginning in July 2025. Regardless of who actually spoke with Respondent on the

telephone, Respondent understood that she had some amount of time to figure out what needed to be done, and to obtain assistance in filing a completed disclosure statement. According to Respondent, there was no mention of a penalty on the telephone call, only an assurance that all she needed to do was file.

While Respondent's reliance on imperfect advice does not absolve relieve Respondent of her responsibility to file, it is an appropriate basis on which to consider mitigation of a monetary penalty. We find the specific, uncontested facts in this case support that Respondent's reasonable reliance on the impression given during the July 2025 telephone call is a second mitigating factor in this case. Accordingly, we reduce the \$1,000 penalty by a total of \$750, consistent with Section 20-1302(2)(b). Accordingly, a civil monetary penalty of \$250 shall be imposed for Respondent's violation.

VIII. CONCLUSION

For the reasons stated above, we find that the undisputed evidence shows that Respondent was required to file an SFI for 2024 because she served on the ENP during that year, but failed to file by May 1, 2025, in violation of Code Section 20-610 and Regulation No. 3. Additionally, we find that the evidence supports the application of two mitigating factors. Accordingly, the Board imposes a civil monetary penalty of \$250 to be paid within thirty-five (35) days of the issuance and mailing of this Final Determination and the accompanying Order.

BY THE PHILADELPHIA BOARD OF ETHICS

/s/ Ellen Mattleman Kaplan

Ellen Mattleman Kaplan, Esq., Acting Chair
Hon. Nelson A. Diaz (Ret.), Member
Jim Engler, Esq., Member
Wesley R. Payne, IV, Esq., Member
Hon. Idee C. Fox (Ret.), Member